

9. A combination may be one in restraint of interstate trade or commerce or to monopolize a part of such trade or commerce in violation of the Sherman Act, although such restraint or monopoly may not have been actually attained to any harmful extent. P. 811.
 10. The material consideration in determining whether a monopoly exists is not that prices are raised and that competition actually is excluded but that power exists to raise prices or to exclude competition when it is desired to do so. P. 811.
 11. *United States v. Aluminum Co. of America*, 148 F. 2d 416, approved. Pp. 811-814.
 12. Separate convictions for a conspiracy to restrain trade and for a conspiracy to monopolize trade do not amount to double jeopardy or to a multiplicity of punishment in a single proceeding contrary to the Fifth Amendment, since they are separate statutory offenses, one being made criminal by § 1 and the other by § 2 of the Sherman Act. *Braverman v. United States*, 317 U. S. 49, distinguished. Pp. 787, 788.
 13. Separate convictions for monopolization and for conspiring to monopolize in violation of the Sherman Act do not result in multiple punishment contrary to the Fifth Amendment, since they are separate offenses. *United States v. Rabinowich*, 238 U. S. 78; *Pinkerton v. United States*, 328 U. S. 640. Pp. 788, 789.
- 147 F. 2d 93, affirmed.

Petitioners were convicted of violating §§ 1 and 2 of the Sherman Anti-Trust Act. The Circuit Court of Appeals affirmed. 147 F. 2d 93. This Court granted certiorari "limited to the question whether actual exclusion of competitors is necessary to the crime of monopolization under § 2 of the Sherman Act." 324 U. S. 836. A petition for rehearing and enlargement of the scope of review in No. 20 was denied. 324 U. S. 891. *Affirmed*, p. 815.

George W. Whiteside and *Milton Handler* argued the cause for petitioners in No. 18. With them on the brief was *John A. V. Murphy*.

Bethuel M. Webster argued the cause for petitioners in No. 19. With him on the brief was *Francis H. Horan*.